

		<i>Moving party to give notice.</i>
102	Kaufman vs. Varraveto, 25-01525302	Defendant Joseph Varraveto ("Defendant") demurs to the to the first cause of action for breach of guaranty, second cause of action for promissory fraud, and third cause of action for fraud in the inducement. Alternatively, Defendant asks the Court to stay the case pending the "resolution of Deliver It Overnight, LLC, Case No. 8:25-bk-10446-SC, currently pending before the U.S. Bankruptcy Court, Central District of California, given that Plaintiff seeks the same recovery under the same promissory note in both actions. See Cal. Code Civ. Proc. § 430.10(c); Cal. Civ. Proc. Code § 418.10(a)(2); <i>see also</i> <i>Caiafa Prof. Law Corp. v. State Farm Fire & Cas. Co.</i>, 15 Cal.App.4th 800, 804 (1993)." Defendant also requests judicial notice of: (1) the Secured Demand Promissory Note, entered into between Scott D. Kaufman ("Plaintiff" or "Kaufman") and DI Overnight, LLC ("DIO"), DI Logistics LLC, DI Overnight Investments, LLC, and DI Express, LLC on December 22, 2024, (2) Declaration Under Penalty of Perjury for Non-Individual Debtors, filed by Plaintiff, on behalf of DIO, in the matter entitled, Deliver It Overnight, LLC, Case No. 8:25-bk 10446-SC, currently pending in the U.S. Bankruptcy Court, Central District of California I. DEMURRER On June 12, 2026, Plaintiff Scott Kaufman, proceeding in pro per, filed the operative First Amended Complaint. Thus, the demurrer is moot pursuant to Code of Civil Procedure section 472(a), which states: "A party may amend its pleading once without leave of the court at any time before the answer, demurrer, or motion to strike is filed, or after a demurrer or motion to strike is filed but before the demurrer or motion to strike is heard if the amended pleading is filed and served no later than the date for filing an opposition to the demurrer or motion to strike." (Code Civ. Proc., § 472, subd. (a).) II. REQUEST FOR JUDICIAL NOTICE Defendant requests judicial notice of the following documents: 1. The Secured Demand Promissory Note, entered into between Scott D. Kaufman and DI Overnight, LLC, DI

		Logistics LLC, DI Overnite Investments, LLC, and DI Express, LLC on December 22, 2024. 2. The Declaration Under Penalty of Perjury for Non-Individual Debtors, filed by Plaintiff, on behalf of DIO, in the matter entitled, Deliver It Overnite, LLC, Case No. 8:25-bk 10446-SC, currently pending in the U.S. Bankruptcy Court, Central District of California on September 12, 2025. 3. The Schedule D: Creditors Who Have Claims Secured by Property, which was executed and filed by Plaintiff, on behalf of DIO, in the Bankruptcy Action, on September 12, 2025. 4. The Notice of Possible Dividend and Order Fixing Time to File Claims, filed by the Clerk of Court in the Bankruptcy Action on October 22, 2025. The request is DENIED as to the Secured Demand Promissory Note, entered into between Scott D. Kaufman and DI Overnite, LLC, DI Logistics LLC, DI Overnite Investments, LLC, and DI Express, LLC on December 22, 2024. "Although the existence of a document may be judicially noticeable, the truth of statements contained in the document and its proper interpretation are not subject to judicial notice if those matters are reasonably disputable." (<i>Fremont Indemnity Co. v. Fremont General Corp.</i> (2007) 148 Cal.App.4th 97, 113.) This promissory note is not attached to the operative Complaint and the Court will not consider or interpret the language and agreements contained in the Promissory Note. The request is GRANTED as to the remaining documents. "A court may take judicial notice of the [e]xistence of each document in a court file, but can only take judicial notice of the truth of facts asserted in documents such as orders, findings of fact and conclusions of law, and judgments." (<i>People v. Franklin</i> (2016) 63 Cal.4th 261, 280.) Likewise, "Courts can take judicial notice of the existence, content and authenticity of public records and other specified documents, but do not take judicial notice of the truth of the factual matters asserted in those documents." (<i>Dominguez v. Bonta</i> (2022) 87 Cal.App.5th 389, 400, as modified (Jan. 6, 2023).) III. MOTION TO STAY PENDING BANKRUPTCY MATTER Defendant also asks the Court to stay the case "because there is another action pending that impacts the rights of the same parties on the pending causes of action in this lawsuit. See Cal. Civ. Proc. Code § 418.10(a)(2); cf. Cal. Code Civ. Proc. § 430.10(c); <i>Caiafa Prof. Law Corp. v.</i>
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		<i>State Farm Fire & Cas. Co.</i>, 15 Cal. App. 4th 800, 804 (1993)." Plaintiff did not address this request. Code of Civil Procedure section 418.10(a)(2) states: "(a) A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes: . . . (2) To stay or dismiss the action on the ground of inconvenient forum." (Code Civ. Proc., § 418.10, subd. (a)(2).) Code of Civil Procedure section 418.10(c) states: "(c) If the motion is denied by the trial court, the defendant, within 10 days after service upon him or her of a written notice of entry of an order of the court denying his or her motion, or within any further time not exceeding 20 days that the trial court may for good cause allow, and before pleading, may petition an appropriate reviewing court for a writ of mandate to require the trial court to enter its order quashing the service of summons or staying or dismissing the action. The defendant shall file or enter his or her responsive pleading in the trial court within the time prescribed by subdivision (b) unless, on or before the last day of the defendant's time to plead, he or she serves upon the adverse party and files with the trial court a notice that he or she has petitioned for a writ of mandate. The service and filing of the notice shall extend the defendant's time to plead until 10 days after service upon him or her of a written notice of the final judgment in the mandate proceeding. The time to plead may for good cause shown be extended by the trial court for an additional period not exceeding 20 days." The Court is not persuaded that this case should be stayed pending the resolution of the bankruptcy proceeding, Deliver It Overnite, LLC, Case No. 8:25-bk-10446-SC. Pursuant to the judicially noticeable documents, the bankruptcy proceeding does not involve any of the parties named in this action. "[A] bankruptcy stay is only effective as to the party in bankruptcy." (<i>Freiberg v. City of Mission Viejo</i> (1995) 33 Cal.App.4th 1484, 1488.)
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		In this action, the parties are Scott Kaufman, as an individual, and Joseph Varraveto, as an individual. The bankruptcy proceeding only concerns corporate debtors and creditors. Thus, the bankruptcy stay is not effective as to the parties in this action. The request to stay the matter is DENIED. The Case Management Conference is continued to September 3, 2026 at 1:30 p.m. <i>Moving party to give notice.</i>
103	Ally Bank vs. SDL Fire Protection Inc., 25-01531875	Plaintiff, Ally Bank ("Plaintiff"), moves for an order for writ of possession of a 2022 Ram 2500 motor vehicle, Vehicle Identification Number 3C7WR5HJ3NG223004. Two Applications for Writ of Possession were filed: one as to Defendant, SDL Fire Protection Inc., and the other as to Defendant, Gustavo Garcia Barajas aka Gustavo G. Barajas aka Gustavo Garcia aka Gustavo Barajas (collectively, "Defendants"). Plaintiff contends that it was assigned a contract whereby Defendants purchased from Plaintiff's assignor a 2022 Ram 2500 motor vehicle, Vehicle Identification No. 3C7WR5HJ3NG223004 (the "Subject Vehicle" or "2022 Ram 2500"), that Plaintiff is entitled to possession of the Subject Vehicle as the contract is in default and there remains unpaid and past due the installment due and owing on 11/16/2024 in the sum of \$514.24, and each of the regular payments of \$1,285.59 falling due thereafter, in addition to late and other charges, and that as of the filing of this action, there is a balance due and owing in the sum of \$58,995.50 together with other charges per the contract. Plaintiff thus asserts that its claim has probable validity, requiring the writ of possession to be issued. No opposition has been filed. Except under certain conditions, no writ of possession shall be issued except after a hearing on a noticed motion. (Code Civ. Proc. § 512.020(a).) Prior to the hearing required by Code of Civil Procedure section 512.020(a), the defendant shall be served with all of the following: (1) a copy of the summons and complaint; (2) a Notice of Application and Hearing; and (3) a copy of the application and any affidavit in support thereof. (Code Civ. Proc. § 512.030(a)(1)-(3).) The Court's file reflects that Defendants, SDL Fire Protection inc., a corporation, and Gustavo Garcia Barajas aka Gustavo G. Barajas aka Gustavo Garcia aka Gustavo Barajas, an individual were served with a copy